

STATE OF NEW YORK

8169--B

2025-2026 Regular Sessions

IN ASSEMBLY

May 5, 2025

Introduced by M. of A. ROSENTHAL, SOLAGES -- read once and referred to the Committee on Corporations, Authorities and Commissions -- recommended to the Committee on Corporations, Authorities and Commissions in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public authorities law, in relation to membership on the Long Island rail road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council, and in relation to the powers and duties of the permanent citizens advisory committee

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "R.I.D.E.R
2 'Rider Interests Deserve Empowering Representation' Act".

3 § 2. The section heading and subdivisions 1 and 2 of section 1204-e of
4 the public authorities law, the section heading as added by chapter 483
5 of the laws of 1981 and as renumbered by section 2 of part H of chapter
6 25 of the laws of 2009, subdivisions 1 and 2 as amended by chapter 125
7 of the laws of 2022, are amended to read as follows:

8 New York city transit [~~authority-advisory~~] riders council. 1. There is
9 hereby created the New York city transit authority advisory riders coun-
10 cil, to study, investigate, monitor, and make recommendations with
11 respect to the maintenance and operation of the New York city transit
12 authority, its subsidiaries, and the Staten Island rapid transit operat-
13 ing authority. Such council shall study and investigate all aspects of
14 the day to day operations of such authority, its subsidiaries and the
15 Staten Island rapid transit operating authority, monitor their perform-
16 ance and recommend changes to improve the efficiency of the operation
17 thereof. Such council shall study and make recommendations in regard to

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 improving bicycle and pedestrian access on trains and buses, and at
2 bridges, stations and other facilities operated by the authority, its
3 affiliates and subsidiaries and the Staten Island rapid transit operat-
4 ing authority and submit such recommendations to the metropolitan trans-
5 portation authority on or before June first, two thousand twenty-two and
6 every five years thereafter.

7 2. Such council shall consist of sixteen members who shall be commu-
8 ters who regularly use the transportation services of such authorities.
9 Of the sixteen members, at least one member shall be a resident of Bronx
10 county, at least one member shall be a resident of Kings county, at
11 least one member shall be a resident of New York county, at least one
12 member shall be a resident of Richmond county, and at least one member
13 shall be a resident of Queens county. Six of such sixteen members shall
14 be appointed by the governor upon the recommendation of the mayor of the
15 city of New York[;], five upon the recommendation of the [~~president~~
16 ~~public advocate~~ of the [~~city council of the~~] city of New York[;], and
17 five [~~other members appointed upon the recommendation one by each of the~~
18 ~~borough presidents of the boroughs of the city of New York.~~] upon the
19 recommendation of local elected officials in consultation with the
20 borough president of such borough of the city of New York where the
21 member resides. Provided, however, that one member recommended by the
22 mayor of New York shall have a demonstrated expertise or interest in the
23 promotion and development of improved bicycle and pedestrian access at
24 bridges, stations and other facilities operated by the metropolitan
25 transportation authority, as created by section twelve hundred sixty-
26 three of this article, and such authority's affiliates and subsidiaries.
27 The [~~chairman~~] chairperson shall be a member selected by the membership
28 of the committee. Each of the members shall serve for a term of two
29 years[, ~~provided, however, that of the first appointments, two appointed~~
30 ~~upon the recommendation of the mayor and two appointed upon the recom-~~
31 ~~mendation of the president of the city council shall serve for a term of~~
32 ~~one year~~]. Vacancies occurring other than by expiration of term shall be
33 filled in the same manner as the original appointments for the balance
34 of the unexpired term but shall be subject to the provisions of subdivi-
35 sion five of section twelve hundred sixty-six-i of this article.

36 § 3. The section heading and subdivisions 1 and 2 of section 1266-d of
37 the public authorities law, the section heading as added by chapter 482
38 of the laws of 1981, subdivision 1 as amended by chapter 125 of the laws
39 of 2022, and subdivision 2 as amended by chapter 802 of the laws of
40 2021, are amended to read as follows:

41 Long Island rail road [~~commuter's~~] commuter council. 1. There is here-
42 by created the Long Island rail road [~~commuter's~~] commuter council, to
43 study, investigate, monitor and make recommendations with respect to the
44 maintenance and operation of the Long Island rail road. Such council
45 shall study and investigate all aspects of the day to day operations of
46 such railroad, monitor its performance and recommend changes to improve
47 the efficiency of the operation thereof. Such council shall study and
48 make recommendations in regard to improving bicycle and pedestrian
49 access at bridges, stations, and other facilities operated by the Long
50 Island [~~Railroad~~] Rail Road and submit such recommendations to the
51 metropolitan transportation authority on or before June first, two thou-
52 sand twenty-two and every five years thereafter.

53 2. Such council shall consist of thirteen members who shall be commu-
54 ters who regularly use the transportation services of such railroad, and
55 who shall be residents of Nassau, Suffolk, Queens, or [~~Brooklyn~~] Kings
56 county. Members shall be appointed by the governor upon the recommenda-

tion of local elected officials in consultation with the county executive of ~~[each such]~~ Nassau or Suffolk county, provided, however, that such members shall be chosen from a list of ten names submitted by each such county executive and provided further however that no more than six members of such council shall be residents of either such county. Provided, however, that one member shall be appointed on the recommendation of a local elected official in consultation with the borough president of Queens and one member shall be appointed on the recommendation of a local elected official in consultation with the borough president of Brooklyn. Provided, however, that one member ~~[shall be]~~, appointed ~~[who has a]~~ upon the recommendation of a local elected official in consultation with the county executive or borough president of such county or borough where the member resides shall have demonstrated expertise or interest in the promotion and development of improved bicycle and pedestrian access at bridges, stations and other facilities operated by the authority and its affiliates and subsidiaries. Vacancies occurring in the membership of the council shall be filled in the same manner as original appointments, provided, however, that if the appointment prior to the vacancy was made upon the recommendation of the Nassau or Suffolk county executive, such vacancy shall be filled from a list of three names submitted by each such county executive, and provided, further, that such appointments shall be subject to the provisions of subdivision four of section twelve hundred sixty-six-i of this title.

§ 4. The section heading and subdivisions 1 and 2 of section 1266-e of the public authorities law, the section heading as added by chapter 482 of the laws of 1981, subdivision 1 as amended by chapter 125 of the laws of 2022, and subdivision 2 as amended by chapter 802 of the laws of 2021, are amended to read as follows:

Metro-North ~~[rail]~~ railroad commuter council. 1. There is hereby created the Metro-North ~~[rail]~~ railroad commuter council to study, investigate, monitor and make recommendations with respect to the maintenance and operation of those portions of, if any, the Hudson, Harlem, New Haven, Penn Access, Pascack Valley and Port Jervis commuter railroad lines remaining within the metropolitan commuter transportation district. Such council shall study and investigate all aspects of the day to day operation of such railroad lines, monitor their performance and recommend changes to improve the efficiency of the operation thereof. Such council shall study and make recommendations in regard to improving bicycle and pedestrian access at bridges, stations and other facilities operated by such railroad lines and submit such recommendations to the metropolitan transportation authority on or before June first, two thousand twenty-two and every five years thereafter.

2. Such council shall consist of twelve members and shall be commuters who regularly use the transportation services of such railroad lines. At least five of such members shall be residents of the county of Westchester. Of the other seven members, at least one of such members shall be a resident of each of the counties of Rockland, Putnam, Dutchess, Orange and Bronx, provided that such county has not withdrawn from the metropolitan commuter transportation district pursuant to section twelve hundred seventy-nine-b of this title; provided further, should only the county of Putnam remain in the metropolitan commuter transportation district then membership on such council shall consist of eight members, six of whom reside in the county of Westchester and two of whom reside in the county of Putnam. Members shall be appointed by the governor. In making such appointments the governor shall consult with and solicit recommendations from local officials and to the extent possible appoint

members who represent the ridership of the several commuter railroad lines. Provided, however, that one member shall be appointed who has a demonstrated expertise or interest in the promotion and development of improved bicycle and pedestrian access at bridges, stations and other facilities operated by the authority and its affiliates and subsidiaries. Vacancies occurring in the membership of the council shall be filled in the same manner as original appointments but shall be subject to the provisions of subdivision four of section twelve hundred sixty-six-i of this title.

§ 5. Section 1266-i of the public authorities law, as added by section 10 of part H of chapter 25 of the laws of 2009, is amended to read as follows:

§ 1266-i. The permanent citizens advisory committee. 1. There is hereby established a permanent citizens advisory committee. The members of the committee shall consist of the following members: the Long Island Rail Road ~~[commuter's]~~ commuter council, the Metro-North railroad commuter council, and the New York city transit ~~[authority advisory]~~ riders council, as defined in section twelve hundred four-e of this ~~[chapter]~~ article.

2. Such committee shall serve as a coordinating council of the Long Island Rail Road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council, providing a regional and balanced perspective to such councils' work. Such committee shall be a source of advice to the authority and its subsidiaries and affiliates regarding matters of finance, operations, management, planning, service issues, and the capital program plans established in section twelve hundred sixty-nine-b of this title as well as any other capital plans of such authority. Such committee shall have the same access to information of the authority and its subsidiaries and affiliates as the Long Island Rail Road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council.

3. The members of the Long Island Rail Road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council shall receive no compensation for their services but shall be reimbursed for actual and necessary expenses incurred in the performance of their duties.

4. (a) Appointments to the Long Island Rail Road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council shall be made as prescribed in section twelve hundred sixty-six-d, twelve hundred sixty-six-e, or twelve hundred four-e of this article, respectively, except that if recommendations for members have not been made by an elected official endowed with the power to make such recommendation in such respective sections within ninety days of a vacancy on the Long Island Rail Road commuter council, the Metro-North railroad commuter council, or the New York city transit riders council, interim appointments may be made upon the recommendation of the executive committee and staff of the permanent citizens advisory committee. The interim appointments described herein shall last for the balance of the unexpired term or until an elected official endowed with the power to make a recommendation in section twelve hundred sixty-six-d, twelve hundred sixty-six-e, or twelve hundred four-e of this article makes such recommendation for appointment and such appointment is confirmed by the governor, whichever is sooner.

(b) Notice of the appointments described herein shall be included in the official meeting minutes of the permanent citizens advisory committee.

1 5. The committee shall also have employees who do not serve on the
2 commuters and riders councils described in this section, but who are
3 employed by the authority to serve the committee.

4 6. The permanent citizens advisory committee and the authority may
5 enter into agreements with each other to facilitate the provisions of
6 this section.

7 § 6. This act shall take effect immediately.